

However, in J.16/13, the board held that, where the formal order of an appealed decision is obviously erroneous to such an extent that it is essentially incomprehensible when compared with the reasons in the body of the decision, in particular when it plainly does not correspond to any of the foreseen possible legal effects flowing from the substantive issue underlying the appealed decision, and if the competence pursuant to Art. 21(3) EPC is supposed to change from one board to another only because of such an "impossible" order, the formal order can be disregarded for the purposes of Art. 21(3)(a) and (c) EPC, and rather the substantive request underlying the decision must be guiding in determining the board competent to decide the case (T.1382/08 not followed).

c) Legal Board of Appeal competent

An appeal against the decision of the examining division refusing a request for corrections under R. 88 EPC 1973 (R. 139 EPC) filed after grant of the patent, on the other hand, is to be decided by the Legal Board of Appeal. The appeal concerned the preliminary question of whether a request under R. 88 EPC 1973 could be made after grant. This was purely a question of law, and did not concern the refusal of a European patent application or the grant of a European patent. It was also consistent with G. 8/95, as answering the preliminary question did not involve any consideration of the text with which the patent should be granted (J.42/92).

2.3.2 Specific cases

a) Interruption of proceedings

The question for the board in T.854/12 was whether it was competent to decide itself whether proceedings had been interrupted under R. 142 EPC, or had to arrange for the Legal Division to take a decision in this regard. It found that a decision-making board had to ascertain for itself whether, based on the facts submitted and any additional facts it had had to investigate of its own motion, the conditions for an interruption had been met, if its decision depended on this point (see also T.54/17).

b) Request for a search-fee refund

In G.1/11 (OJ 2014, A122) the Enlarged Board of Appeal held that a technical board of appeal was competent to hear an appeal against an EPO examining division's decision – taken separately from its decision granting a patent or refusing the application – not to refund search fees under R. 64(2) EPC.

Where a request under R. 64(2) EPC for a refund of a further search fee paid under R. 64(1) EPC is first filed on appeal against an examining division decision, the board has no competence to decide on it and it must therefore be refused as inadmissible (T.2076/15).

c) Interlocutory revision and reimbursement of appeal fee

In G 3/03 (OJ 2005, 344), the Enlarged Board of Appeal held that in the event of interlocutory revision under Art. 109(1) EPC 1973, the department of first instance whose decision had been appealed was not competent to refuse a request of the appellant for reimbursement of the appeal fee. It was the board of appeal which would have been competent under Art. 21 EPC 1973 to deal with the substantive issues of the appeal if no interlocutory revision had been granted which was competent to decide on the request.

2.4. Entitlement to appeal

2.4.1 Formal aspects under Article 107 EPC

Under Art. 107, first sentence, EPC, an EPO decision can be appealed only by a party to the proceedings which gave rise to it. Concerning the entitlement to appeal of a transferee of a patent, see chapter III.Q.1. "Party status as patent proprietor".

a) Appeal filed by wrong company

In T 340/92 the appellant was a company which had obviously been named in the notice of appeal by mistake, instead of a subsidiary, which was the real opponent. The actual appellant was the only party adversely affected by refusal of the opposition, and was readily identifiable through its representative, who was named in the appeal dossier. The board held that this deficiency could be remedied under R. 65(2) EPC 1973 (R. 101(2) EPC). See also T 875/06.

However, if the notice of appeal was filed by an adversely affected party, but the grounds of appeal were filed by a different company which was not a party to the opposition proceedings, let alone a party adversely affected by the outcome of those proceedings, the appeal could not be held admissible. No provision having been made in the Implementing Regulations pursuant to Art. 133(3), last sentence, EPC 1973 the EPC 1973 did not allow the representation of one legal person by the employee of another economically related legal person, who could not therefore file the grounds of appeal on the other's behalf (T 298/97, OJ 2002, 83).

According to G 1/12 (OJ 2014, A114), the identity of the appellant, i.e. the person entitled to appeal, has to be established by expiry of the two-month period prescribed in Art. 108, first sentence, EPC at the latest (see R. 101(1) EPC). In certain circumstances, errors in the information identifying the appellant can be corrected under R. 101(2) EPC (for more details on this, see chapter V.A.2.5.2).

b) Appeal filed in name of representative

An appeal filed in the name of the representative instead of the party adversely affected by the decision impugned was rejected as inadmissible in J 1/92.

In the absence of any clear indication to the contrary, a professional representative who was authorised to act for a party adversely affected by a decision and then filed an appeal against this decision had to be presumed to be acting on behalf of the very same party that he acted for in the first instance proceedings, and not on behalf of someone else not entitled to appeal (T 920/97). Although the notice of appeal did not indicate the name and address of the appellant as required by R. 64(a) EPC 1973, the appellant corrected the notice of appeal in time and the appeal was thus admissible. See also T 1911/09 and T 2244/14.

c) Party consisting of plurality of persons

If a party consists of a plurality of persons, an appeal against a decision which adversely affects this party has to be filed on behalf of all these persons through their duly determined common representative (see G 3/99, OJ 2002, 347, where multiple opponents file a joint opposition; T 1154/06, with respect to joint proprietors of a European patent; see also R 18/09, with respect to joint proprietors and a petition for review) (T 755/09).

In G 3/99 (OJ 2002, 347), the Enlarged Board of Appeal held that where the opposing party consisted of a plurality of persons, an appeal had to be filed by the common representative under R. 100 EPC 1973. Where the appeal was filed by a non-entitled person, the board of appeal was to consider it not to be duly signed and consequently invite the common representative to sign it within a given time limit. The non-entitled person who filed the appeal should be informed of this invitation. If the previous common representative was no longer participating in the proceedings, a new common representative should be determined pursuant to R. 100 EPC 1973 (R. 151 EPC). See also R 18/09. In order to safeguard the rights of the patent proprietor and in the interests of procedural efficiency, it had to be clear throughout the procedure who belonged to the group of common opponents or common appellants. If either a common opponent or appellant (including the common representative) intended to withdraw from the proceedings, the EPO had to be notified accordingly by the common representative or by a new common representative determined under R. 100(1) EPC 1973 in order for the withdrawal to take effect (see e. g. T 562/13).

Where an appeal is filed by **only one of several joint members** of a party and where this member is not the common representative, the board of appeal should send the common representative a communication giving him the opportunity to fulfil the necessary requirements of the EPC (see G 3/99, T 1154/06). If the common representative does not do so, the notice of appeal is deemed not to have been filed. Such an appeal is thus treated in the same way as an appeal filed but not signed by an authorised person (R 18/09; see also T 755/09).

In T 755/09 the appeal was filed only on behalf of one of several persons who, at the time of filing the appeal, were the joint applicants of the application in suit (see Art. 59 EPC). In principle the appeal had therefore to be held inadmissible in accordance with R. 101(1) EPC. The board pointed out that the case did not come under the category calling for a communication under R. 101(2) EPC inviting the appellant to remedy

deficiencies under R. 99(1)(a) EPC within a specified period (see G. 1/12, OJ 2014, A114). The notice of appeal was unambiguous nor did the appellant ever claim that the notice of appeal contained a deficiency under R. 101(2) EPC. The legal remedy foreseen in R. 101(2) EPC therefore could not apply (see also T. 656/98, OJ 2003, 385).

An appeal filed by a party to the proceedings who is adversely affected by the contested decision is admissible even if it was jointly filed with a different company that was not a party to the proceedings (T. 158/19).

d) Company in receivership

A company that has gone into receivership can no longer validly file an appeal; only the insolvency administrator can do so on its behalf. In T. 693/05, the insolvency administrator had authorised the representative to file an appeal, which was held admissible. In T. 1324/06, the authorised representative of a company which had previously been declared bankrupt filed an appeal on behalf of the company. Relying on R. 101(6) EPC 1973 and R. 152(8) EPC, under which the authorised representative shall be deemed to be authorised until the termination of his authorisation has been communicated to the EPO, the board held the appeal admissible, no such notification having been received from the insolvency administrator or representative.

e) Death of the appellant (opponent)

In T. 1213/13, the board noted that the appellant, the only party to the proceedings adversely affected by the appealed decision, had died. The deadline set in the board's communication aiming to establish if there were any heirs had passed and the communication gone unanswered. It had therefore not been possible to identify any heirs (or legal representatives). Since the status of opponent could pass to any heirs, where an opponent was an appellant too, the heirs could pursue the appeal. However, they had to make themselves known and prove their status as such. The board declared the proceedings closed for want of an appellant to pursue them (see also T. 74/00).

2.4.2 Party adversely affected (Article 107 EPC)

a) General

Under Art. 107 EPC, any party to proceedings adversely affected by a decision may appeal. A party is adversely affected within the meaning of Art. 107 EPC if the decision fails to meet that party's wishes. This had to be assessed by comparing the request at first instance with the substance of the decision (see T. 244/85, OJ 1988, 216; T. 1682/13). According to T. 234/86 (OJ 1989, 79) a party is adversely affected if the decision does not accede to his main requests or to auxiliary requests preceding the allowed auxiliary request (see also T. 392/91). This is not the case if the patent proprietor withdraws his main request or preceding auxiliary requests and agrees with the allowed auxiliary request (T. 506/91, T. 528/93, T. 613/97, T. 54/00, T. 434/00).

The question of whether or not a party is adversely affected by a decision taken by an authority as defined in Art. 106 EPC arises in connection with Art. 107 EPC in order to establish who may appeal.

An appeal is inadmissible where the appellant is seeking to amend not the decision itself but the reasons for it (T 84/02) or the sole aim is to settle a point of law not relevant to the case (J 7/00, see also T 1790/08). Abandoning claims to have a prompt decision in order to be in a position to appeal results in the appeal being inadmissible where the patentee's requests were actually granted by the opposition division (T 848/00).

In T 735/13, the board held that appellants who had agreed with a decision at the time but later changed their minds could not be regarded as adversely affected; an adverse effect required a discrepancy between the decision and what they had been requesting when it was issued.

b) Patent applicant

(i) Decision to grant the patent

In J 12/83 (OJ 1985, 6) the board found that an applicant for a European patent might be "adversely affected" within the meaning of Art. 107 EPC 1973 by a decision to grant the patent, if the patent was granted with a text not approved by him under Art. 97(2)(a) EPC 1973 and R. 51(4) EPC 1973 (R. 71(3) EPC) (see also J 12/85, OJ 1986, 155; T 114/82 and T 115/82, both OJ 1983, 323 and T 1/92, OJ 1993, 685).

In T 1003/19 the appellant was adversely affected despite the decision to grant a patent. The granted version of the patent corresponded neither to a text submitted by the applicant nor to a text agreed by it, nor to a text deemed to have been approved by it. There was, therefore, a discrepancy between the applicant's request and the decision of the examining division. R. 71(5) EPC only applied where the text intended for grant had been communicated to the applicant according to R. 71(3) EPC. In the board's view, this was not the case, where there was sufficient evidence to conclude that the text referred to in the communication under R. 71(3) EPC did not reflect the true will of the examining division. See also T 2081/16.

Following T 1003/19 and T 2081/16, the board in T 408/21 stated that R. 71(5) EPC did not apply in this case either, as in the step preceding the deemed approval the applicant had to be informed of the text in which the examining division intended to grant the patent according to R. 71(3) EPC. Although the (then) applicant received a R. 71(3) EPC communication, the documents indicated were not those which the examining division intended to grant.

In T 2277/19 the board stated that the appellant was not adversely affected by the decision to grant a patent. The board did not follow the approach taken in T 1003/19 and T 2081/16. In the board's judgement, R. 71(3) EPC imposed on the applicant a duty to check and verify the text. The fact that an applicant did not exercise its right to request amendments